

LEGAL UPDATES

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AND DATA PROTECTION AS ENSHRINED
IN THE NEW PROCLAMATION
NO.1321/2024



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Unveiling the Legal Framework: A Deep Dive into the Right to Privacy and Data Protection as enshrined in the New Proclamation no.1321/2024

In today's digital age, the right to privacy and data protection has become increasingly crucial in safeguarding individuals' personal information from unauthorized access or misuse. As technology advances, so do the risks and challenges related to privacy and data security.

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Ethiopia for all the advancements that have been made since the fall of the Derg regime, hasn't adopted a comprehensive legal framework to address Cyber-related issues or personal data protection. Against this backdrop, the introduction of Proclamation No. 1321/2024 in Ethiopia marks a significant milestone in addressing these concerns and establishing a legal framework for protecting citizens' rights in the digital realm.



The 1948 Universal Declaration of Human Rights, under article 12 recognizes the right to privacy where it states "No one shall be subjected to arbitrary interference with his privacy, family, home or correspondence, nor to attacks upon his honor and reputation. Everyone has the right to the protection of the law against such interference or attacks". We can find this understanding of the right to privacy under article 26 of the 1995 constitution of Ethiopia where it states "Everyone has the right to privacy without any interference.



This includes the right not to be subjected to searches of his home, person or property, or the seizure of his property, and the privacy of his correspondence except in cases of national security and public peace or morality....” However, like most rights that stood the test of time the right to privacy has gone under significant changes since the arrival of the digital age. Now around the world this right also includes the online personal data protection and protection of individual autonomy against cybercrime. The adoption of proclamation no.1321/2024, in light of this modern conception of the right to privacy is a long overdue.



The proclamation introduces a suite of new rights and safeguards, with a particular emphasis on bolstering individuals' control over their personal data. Article 25(1) bestows upon individuals the rights to access, correct, delete, and limit the processing of their data. Moreover, it allows them to challenge direct marketing efforts and decisions made by automated systems. The proclamation clearly defines 'Data Subject Rights,' which encompass the rights to be informed, access personal data(Art. 24), rectify inaccuracies, erase data under specific conditions, restrict data processing(Art. 30), oppose certain types of processing, and obtain data in a portable format(Art. 32).



Furthermore, this proclamation is unprecedented in detailing explicit responsibilities for entities that control and manage personal data (Art. 42-52). These entities are mandated to secure informed consent for the use of personal data (Art 48), enforce suitable security protocols, and report any data breaches (Art 43). They are also bound by restrictions, such as collecting data solely for essential business operations. Consequently, businesses are obligated to collect and utilize data for legitimate purposes only and to maintain transparency with users regarding their data management practices.



The proclamation also addresses Data Security Measures Art. 42(a), underscoring the importance of data protection through strategies like encryption Art.17(4)(a) and limitations on data transfers. It requires data controllers to establish defenses against unauthorized access, exposure, or loss of personal data Art 28(3)(d), Art. 29(1), and Art. 30 (1)(b).

In a move that has surprised many, the proclamation also includes stipulations on Cross-Border Transfers. It stipulates that personal data cannot be transferred to nations without sufficient data protection laws unless specific criteria are satisfied. These criteria include:

- Proof from the company, whether a data controller or processor, of adequate protection levels in the foreign jurisdiction;
- Explicit consent from the data subject for the transfer, after being apprised of potential risks such as inadequate protection; Art. 20 (1)(b);
- Necessity of the transfer as defined by the proclamation, Art. 20 (1)(c);
- Transfers made from a register that is legally intended to be publicly accessible. Art. 20 (1)(d).



In conclusion, the digital age necessitates a robust legal framework for privacy and data protection. Ethiopia's Proclamation No. 1321/2024 is a commendable step towards safeguarding personal information in an era where technological risks are ever-increasing. This legislation not only aligns with international human rights standards but also introduces comprehensive rights and responsibilities that empower individuals and regulate entities handling personal data. It is imperative for all stakeholders to recognize the importance of these developments and actively prioritize the enforcement of data protection and privacy rights to ensure the safety and dignity of individuals in the digital landscape.